



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35120402

Date: JAN. 21, 2025

Appeal of Nebraska Service Center Decision

Form I-131, Application for Travel Document

The Applicant, a native and citizen of South Korea, seeks a reentry permit. *See* Immigration and Nationality Act (the Act) section 223, 8 U.S.C. § 1203. A reentry permit, obtained prior to departing on temporary travel abroad, allows a lawful permanent resident or conditional resident to apply for admission to the United States upon return, and if that absence lasts more than one year, without the necessity of obtaining a returning resident visa.

The Director of the Nebraska Service Center denied the application, concluding that the record did not establish that the Applicant was physically present in the United States when he applied for the reentry permit. Specifically, the Director determined that the Applicant's Form I-131 was filed on March 20, 2023, and that the Applicant had traveled abroad on February 24, 2023, returning to the United States on April 20, 2023. As a consequence, the Director stated that the Applicant was not physically present in the United States when he filed his Form I-131, Application for Travel Document (Form I 131), on March 20, 2023. The Director cited to the regulation at 8 C.F.R. § 103.2(a)(7)(i). The matter is now before us on appeal. 8 C.F.R. § 103.3.

The Applicant bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

On appeal, the Applicant contends that he was physically present in the United States when he initially mailed his Form I-131. However, the Applicant asserts that he initially mailed the Form I-131 to an incorrect filing location at the U.S. Citizenship and Immigration Services (USCIS) office in Long Beach, California because it was near where he was residing and further claims that it was rejected for this reason. The Applicant's evidence on appeal shows that on February 22, 2023, he mailed an unspecified document to an ASC in Bellflower, California, which is not the location designated for filing a Form I-131 application. The Applicant asserts that he had departed the United States by the time USCIS rejected the Form I-131 because it was not submitted to the location designated for filing. The Applicant includes a copy of a U.S. Postal Service Certified Mail Receipt showing that he initially

mailed an unspecified item to a USCIS Application Support Center¹ (ASC) in Bellflower, California on February 22, 2023, while he was still within the United States, and a copy of an airline ticket showing that he was scheduled for a flight departing from the United States on February 24, 2023. USCIS records reflect that the Form I-131 was subsequently accepted as properly filed at the location designated for filing such a benefit request on March 20, 2023, when the Applicant was still outside the United States.

The regulation at 8 C.F.R. § 103.2(a)(1) provides, in pertinent part, that every form, benefit request, or other document must be submitted and executed in accordance with the form instructions.

The regulation at 8 C.F.R. § 103.2(a)(7) provides, in pertinent part:

(i) USCIS will consider a benefit request received and will record the receipt date as of the actual date of receipt at the location designated for filing such benefit request whether electronically or in paper format.

The regulation at 8 C.F.R. § 103.2(a)(7)(ii)(C) provides that a benefit request that is not filed in compliance with the regulations governing the filing of the specific application must be rejected. A benefit request that is rejected will not retain a filing date. 8 C.F.R. § 103.2(a)(7)(ii).

Although we acknowledge the Applicant claims he was physically present in the United States when he initially mailed the Form I-131 to an incorrect filing location in February 2023, USCIS records reflect that he was outside the United States when the application was properly filed on March 20, 2023, and neither the Act nor the regulations provide for an exception to the pre-departure filing requirement in 8 C.F.R. § 223.2(b)(1). Accordingly, the Applicant is ineligible for a reentry permit because he has not shown that he filed his application while in the United States.²

ORDER: The appeal is dismissed.

¹ USCIS Application Support Centers do not accept direct filings of applications. See <https://egov.uscis.gov/office-locator/#/asc>.

² Although he cannot obtain a reentry permit through this application, the Applicant is not precluded from filing a new application when he is physically present in the United States in lawful permanent resident status.